
CLASSIFICATION BLOCKADE — EVIDENCE UNIT (LOCKED)

Evidence Table (Minimal Form)

Conduct (Observed)	Initial Classification (Signal Stage)	Functional Effect
Unwanted touching, sexual comments	Labeled by school personnel as “teasing,” “playing,” “kids joking”	No harm category assigned; no formal record created
Repeated behavior across time	Treated by staff as “peer interaction,” “not serious”	Incidents handled in isolation; no linkage or aggregation
Escalation to visible harm (complaint, distress)	First formally recognized as “harassment”	Recognition occurs after pattern formation; early-stage record absent

Mechanism Statement

These examples demonstrate that **classification at the point of first observation by institutional actors determines whether conduct enters a recognizable harm framework.**

Where school personnel initially classify conduct as general peer behavior:

- it is not recorded as sex-based harm
- it is not linked across incidents
- it does not form a documented pattern

Result:

The underlying behavior continues, but the conditions required for legal recognition do not form.

This pattern is observable across cases in which early-stage conduct is minimized and later-stage harm is recognized only after escalation.

Legal Link (Davis Alignment)

Under Davis v. Monroe County Board of Education, liability requires:

- severity
- pervasiveness
- actual knowledge
- clearly unreasonable response

Pervasiveness and knowledge depend on:

- incident aggregation
- pattern visibility
- recognized harm classification

By classifying boundary-violating conduct as non-harm at the point of observation, **the institution prevents the accumulation of incidents necessary to establish pervasiveness and actual knowledge under Davis.**

Where early-stage classification blocks:

- aggregation does not occur
 - patterns do not form
 - knowledge does not attach in recognized form
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Conclusion

The legal threshold is not unmet due to lack of harm.

It is prevented from forming due to classification decisions made at the signal stage by institutional actors.

Compressed Line (LOCKED)

Early-stage classification determines whether harm becomes visible, recordable, and legally actionable.

Strike Line (LOCKED)

This is not a failure to detect harm.

It is a system that prevents harm from ever becoming detectable within the structures required for legal recognition.